COMPETENT PLUMBERS (PVT) LTD
and
SHADRECK BAFANA
and
NAISON GIBSON
and
DZIMBANHETE CHIKANYAU
and
FANUEL WAMAMBO
and
MAMBOZZ TRUST
and
RANGANAYI MUPONDORI
versus
TINASHE WAMAMBO
and
TARISAI PAIDAMOYO WAMAMBO
and
TANAKA WAMAMBO
and
BEATRICE MAKANYARA WAMAMBO N.O
and
TAPIWA WAMAMBO
and
REGISTRAR OF COMPANIES

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 23 February 2026 and 29 April 2026

Chamber Application for Upliftment of Bar

Mr *R.T Benza*, for the Applicants
Mr *K.B Munakamwe*, for the First to Fourth Respondents
Mrs *P. M Sagwete*, for the Fifth Respondent
No appearance for Sixth Respondent

MUCHAWA J:

INTRODUCTION

This is a chamber application for upliftment of bar in which the applicants seek the following draft order:

"IT IS ORDERED THAT:

1. The application for upliftment of bar be and is hereby granted.
2. The applicants' failure to file their appearance to defend under case number R-HCH 3533/24 timeously is hereby condoned.
3. The applicants be and are hereby allowed to file their appearance to defend under case number R-HCH 3533/24 within 5 days of receipt of the court order.
4. Costs to be in the cause."

The application is opposed by the first to fourth respondent. The fifth respondent is not opposed to the application whilst the sixth respondent did not file any papers.

I heard the parties and reserved my ruling. This is it.

BACKGROUND TO MATTER

The applicants have clearly set out the background to this matter in their heads of argument. In the main matter R-HCH 3533/24 the first to fourth respondents issued out a summons against fifth and sixth respondents and applicants. They seek a declaratur declaring themselves as the true and only directors and shareholders in the first applicant. The ancillary relief sought is the delivery of certain documentation and accounting for revenue generated in the first applicant company from March 2022.

In the main matter, the first to fourth respondents got a default judgment on the basis that the defendants (now applicants herein) failed to enter an appearance to defend within the prescribed timeframes set by the High Court Rules, despite being properly served.

Following the default judgment the fifth respondent successfully applied for rescission of judgment under case number HCH 4977/24 on 11 December 2024. The fifth respondent was granted leave to file his appearance to defend and plea within 10days of granting of the court order.

Meanwhile, the applicants had also filed an application for rescission of the judgment in the main matter under case HC 4985/24. On 1 August 2025, the matter was struck off the roll after it was withdrawn on account of the default judgment having been already rescinded under case number HC 4977/24. The Honourable DEMBURE J reasoned that the only outstanding issue for the applicants was to seek to leave to file their appearance to defend.

A first attempt to ensure leave to file the appearance to defend was by way of an *ex-parte* chamber application filed under case number HCH 4526/25. That application was dismissed by the Registrar for non-activity. In its place the current application was then filed.

At the hearing of this matter Mr *Munakamwe* stated that they were abandoning the point *in limine* they had raised on dirty hands. I therefore heard the parties on the merits of the matter.

APPLICANT'S SUBMISSIONS

Mr *Benza* submitted that this being a chamber application for upliftment of bar is simply an application for condonation for non-compliance with the Rules of the court.

Reference was made to the cases of *Kodzwa* v *Secretary for Health & Anor* 1999 (1) ZLR 313 (S) and *Read* v *Gardiner* SC 79/17 on the factors to be considered in such an application. These are said to include the degree of non-compliance, the explanation for it, the importance of the case, the prospects of success, the respondent's interest in the finality of his judgment, the convenience of the court and the avoidance of unnecessary delay in the administration of justice.

It was further submitted that these factors should not be considered in isolation but must be balanced and considered cumulatively without placing too much emphasis on one factor. The wide discretion reposed in the court was noted and reference was made to Rule 7 (a) of the High Court Rules, 2021, which authorizes the court to condone a departure from any provision of the rules including an extension of any period.

On the degree of non-compliance, it was submitted that the need to act arose when the applicant's own rescission of judgment application was struck off the roll in August 2025. The court was urged to take note of the *exparte* chamber application filed seeking the upliftment of bar which was then unfortunately dismissed by the Registrar. The inactivity under that matter HCH 4526/25 was attributed to engagements between the applicants and their counsel and is said to be reasonable in the circumstances. The fact that it had been concluded that the route taken was wrong is argued not to be a good reason to punish the applicants.

Mr *Benza* contended that an application for upliftment of bar is not, strictly speaking, a time bound application as a party has the option to wait until the day of the hearing and make an oral application for upliftment of bar as per r39 (4) of the High Court Rules, 2021.

On the strength of the case of *Khumalo* v *Mafurirano* HB 11/04, it was argued that even where there is an unsatisfactory explanation for non-compliance with the Rules, the court still has to engage with the other remaining factors which include prospects of success.

The applicants are said to have a *bona fide* defence to the main matter which carries prospects of success. The applicants dispute that the first to fourth respondents were ever part of the company by challenging the authenticity of the CR6 forms filed by the respondents. Undisputed assertions are that it would have been legally impossible for the first respondent to be a director of the first applicant when he was 14 years old at the time. It is also not denied that it would have been impossible for the fourth respondent in her personal capacity to be the company secretary as she was and still is not ordinarily resident in Zimbabwe.

On the contrary the applicants are alleged to have produced an authentic CR6 which has not been meaningfully challenged.

Regarding shareholding, the share certificates provided by the first to fourth respondents are attacked on account of not being official documents whose authenticity cannot be verified. Reference is made to the case of *Ufreight Euromar* (*Pvt) Ltd* v *Mutebuka* HH 5/03 for this contention.

Per contra, the applicants say they have produced authentic and verifiable documents in the form of a CR 11 and annual return. These being public documents are said to be verifiable.

In support of the contention that the respondents were never shareholders or directors in the first respondent, applicants refer to an application by the fourth respondent under case number HCH 436/24. In the founding affidavit, the fourth respondent is said to confirm that the first to fourth respondents have never been shareholders or directors of any company. This fact has not been disputed by the fourth respondent. Furthermore, in the judgment of *Tinashe Wamambo & 3 Ors* v *Tapiwa Wamambo & 8 Ors* HH 813/25 the court commented on the fourth respondent's inconsistency in claiming that the first applicant company was part of the matrimonial estate and none of the children were shareholders as against claiming that it was always accepted that the children owned the company. A further contrast is given of the claim for 50% stake in the company and distribution of the immovable properties in fourth respondent's amended summons and declaration issued out on 3 October 2024 in a divorce

matter. In the main matter, the first to third respondents are claiming 100 % shareholding in the company as well as the immovable properties.

All the above, it is argued, shows that the applicants have good prospects of success in the main matter and they need to have their day in court.

The matter is said to be important as it concerns the integrity of corporate ownership and hinges on protecting the truth in the face of lies.

Mr *Benza* further submitted that it is convenient for the court and would avoid unnecessary delay in the administration of justice if the matter was heard on the merits. A denial of condonation is alleged to be prejudicial to the applicants who have a vested interest in the outcome of the main matter.

It is prayed that the application be granted with costs.

THE FIRST, SECOND, THIRD AND FOURTH RESPONDENT'S SUBMISSIONS

Mr *Munakamwe* submitted that an application for upliftment of bar is not there for the taking and in order to succeed, an applicant must address and satisfy all the requirements. For this the court was referred to the case of *Friendship* v *Cargo Carriers Ltd & Anor* 2013 (1) ZLR (S) at p4.

The requirements to be satisfied were argued on the basis of the South African case of *Smith N.O* v *Brummer N.0 & Anor* 1954 (3) SA 352 (O) at p358. These are:

(i) A reasonable explanation for the applicant's delay of default. This is said to be the primary consideration.

(ii) The applicant must not be guilty of reckless or intentional disregard of the rules of the court.

(iii) The applicant's case should not be obviously without foundation.

(iv) The other party should not be prejudiced to an extent which cannot be rectified by a suitable order as to costs.

The satisfaction of all the requirements was not said not to be discretionary. See *Chapfika* v *Central African Building Society* HH 2/18. Such factors have to be weighed against each other as per *Read* v *Gardiner & Anor* 2019 ZLR (3) 575 (S).

In this case it is alleged that the applicant has not addressed the explanation for the delay as no explanation has been tendered as to why they failed to enter an appearance to defend. They are alleged not to have rebutted the presumption of service

through an explanation so as to enable the court to decide whether they were in wilful default. They have only explained the delay in bringing this application but are silent on why they did not enter appearance to defend, in the founding affidavit. The situation is said to be compounded by para (b) of the draft order in which the applicants seek condonation for failure to enter their appearances to defend on time.

Such an approach, it is argued, shows that the applicants are treating the application as a right obtainable on demand.

It is averred that there was an inordinate delay in bringing this application as the need to file arose in December 2024 when the default judgment was rescinded. They however, only filed this application on 14 January 2026.

Mr *Munakamwe* argued that if it is assumed that the applicants were not aware of the need to file in December 2024, in February 2025 the respondent wrote a letter as appearing on p 181 of the record, advising the applicants to act but they disregarded the letter.

Furthermore, the applicant's application for rescission of judgment was struck off on 1 August 2025 but they only filed their *ex-parte* application under case number HCH 4526/25 after a month. That delay is said not to have been accounted for. In that matter, despite being legally represented, the applicants are said to have taken another two months without an answering affidavit. The honourable DEME J directed the applicants to progress the matter on 3 December 2025. When there was non-compliance with this directive, the Registrar dismissed the *ex-parte* application.

All of the above is said to point to negligence regard being had to the fact that the applicants were legally represented.

The explanation given that the applicants spent a month engaging with their counsel as to the propriety of filing the *exparte* application is said to be unreasonable as there is no supporting affidavit from the said legal practitioner. See *Selk Enterprises (Pvt) Ltd* v *Chimeya & Ors* SC 10/21.

On prospects of success it is argued that the applicants do not have a good defence to the claim in the main matter. This is because, whereas the company was incorporated in 1998, the second to seventh applicants joined or purported to join the

company for the first time in 2020 as shown on pp 38, 39, 77, 78 and 79 of the record. The crux of the matter is therefore said to revolve amongst the first, second, third, fourth and fifth respondents as the applicants are not privy to affairs before 2022.

On directorship the first to fourth respondents recognize that at some point, the fifth respondent was part of the company, but he purported to remove first and fourth respondents from their designations as director and company secretary in 2022. The court is invited to compare and contrast the CR 14 on p72 and CR 6 on p38 of the record. The fifth respondent is alleged to have unilaterally and unlawfully removed the respondents and it is argued that since he is already before the court in the main matter, he can answer to the arising issues and not the applicants who were not in the picture.

In respect to the shareholding, it is submitted that the fifth respondent un-procedurally and unlawfully diluted the first to third respondent's shares and purportedly allotted them to the applicants. The applicant's interpretation of the fourth respondent's affidavit in case HCH 436/24 as saying the first, second and third respondents were never shareholders of the company is alleged to be incorrect.

Furthermore, the fourth respondent's claim of 50% share of the company in the divorce proceedings is said to be irrelevant to these proceedings. Similarly the *Wamambo & Ors* v *Wamambo & Ors supra* judgment is said to be irrelevant *in casu*. The applicants are alleged to have left a gaping hole by failing to explain how they became directors and shareholders in 2022. This, it is argued, points to collusion with the fifth respondent. Such collusion was noted in *Wamambo & Ors* v *Wamambo & Ors supra*.

Mr *Munakamwe* submitted that the respondents will be prejudiced if this application was to be granted as the main matter is now at pre-trial stage. If granted, this would bring the matter back to pleading stage ad further delay final resolution of the matter. If the application is dismissed, the fifth respondent, who is already before the court, will adequately protect the applicant's interest.

It is prayed that the matter be dismissed with costs on a legal practitioner and client scale.

THE FIFTH RESPONDENT'S SUBMISSIONS

Ms *Sagwete* submitted that the fifth respondent is not opposed to the application as he prefers for the matter to be ventilated on the merits. It was pointed out that there is need to bring finality to litigation particularly as the fourth respondent has directly or indirectly caused various applications or actions to be instituted. These are listed as follows:

a. HCH 2527/22 – Matrimonial summons for divorce.
b. HCH 3727/22 – Urgent Chamber Application for an Interdict.
c. HCH 3387/23 – Urgent Chamber Application for an Anti-Dissipation Interdict involving the First Applicant herein.
d. HCH 3368/23 – Summons for a declaratory order – still pending.
e. HCH 8828/23 – Court Application for a Consolidation.
f. HCH 457/24 – Court Application for Joinder.
g. HCH 5433/24 – Court Application for a Compelling Order.
h. HCH 3525/24 – Summons for a Declaratory Order.
i. HCH 3533/24 now R-HCH 3533/24.

In all the matters the issue of directorship and shareholding in the first applicant is recurrent. The parties are father, mother, children, uncles and cousins and it would be in the interests of justice if the applicants are allowed to participate in the matter.

THE APPLICABLE LAW

The approach to be taken by the court such a matter is aptly set out in *Kodzwa* v *Secretary* for *Health & Anor supra* wherein it was stated as at p 315 B-E as follows:

> "The factors which the court should consider in application for condonation are clearly set out in Herbstein & Van Wisen's The Civil Practice of the Supreme Court of South Africa 4th ed by Van Winsen, Cilliers and Loots at pp 897-898 as follows:
> "Condonation of non-observance of the rules is by no means a mere formality. It is for the applicant to satisfy the court that there is sufficient cause to excuse him from non-compliance ---The court's power to grant relief should not be exercised arbitrarily and upon the mere asking, but with proper judicial discretion and upon sufficient and satisfactory grounds being shown by the applicant. In the determination whether sufficient cause has been shown, the basic principle is that the court has a discretion, to be exercised judiciary upon a consideration of all facts, and in essence, it is a matter of fairness to both sides in which the court will endeavor to reach a conclusion that will be in the best interests of justice. The factors usually weighed by the court in considering applications for condonation --- include the degree of non-compliance, the explanation for it, the importance of the case, the prospects of success, the respondent's interest in the finality of his judgement, the convenience of the court and the avoidance of unnecessary delay in the administration of justice."

I turn to weigh these factors below.

APPLICATION OF THE LAW TO THE FACTS

Whilst accepting that there is an inordinate delay in filing this application, the applicants reckon time from when their application for rescission of judgment was struck off the roll on 1 August 2025. They chronicle how they then filed an *exparte* application for upliftment of bar which was then dismissed by the Registrar for non-prosecution. The reason for this is said to have been engagement with their counsel on the propriety of this course.

I am inclined to agree with the first to fourth respondents that since the applicants seek to be condoned for failure to enter appearance to defend timeously, then they should explain why they did not enter appearance at the prescribed time. The time would therefore be reckoned from that point. Each delay should be accounted for up to this point. The filing an application for rescission of judgement in the face of fifth respondent's should be explained. When the default judgment was rescinded in December 2024, that is when this application should have been filed. It was not, until January 2026.

The actions by the applicants in between those times, can best be classified as dilatory. The applicants ignored a letter written to them by the respondent's legal practitioners on 26 February 2025, and did not resort to alternative remedies provided in the Rules immediately thereafter. When their application for rescission of judgment was struck off the roll on 1 August 2025, they dragged their feet once again in filling an *exparte* chamber application about a month later. No explanation is given for this further delay.

When the respondents filed opposing papers in the *exparte* application, the applicants sat on their laurels. No answering affidavit was filed prompting Honourable DEME J to give a case management order directing the applicants to continue prosecuting the matter. The matter was eventually dismissed for inactivity.

The only explanation given for this further delay is that the applicants were engaging with their counsel on whether the route taken was correct. Such an explanation cannot be reasonable by all accounts as a month would be too long for this. In addition, the court has not been favoured with supporting affidavit from the concerned legal practitioner. See *United Refineries* v *The Mining Industry Pension Fund & 2 Ors* SC 63/14 where it was held that:

> "The court *a quo* found that where a party seeks to redress or explain a procedural omission, irregularity or wrongful conduct attributed to his legal practitioner, it was imperative that the

> legal practitioner concerned be requested to depose to an affidavit to outline his or her role in the conduct of the matter --- The view of this court is that this finding was correct."

In this case it is common cause that the delay was extremely inordinate there is no explanation why the appearance to defend was not filed timeously and no reasonable explanation for all the further delays at each juncture. The tardiness of the applicants is extreme so as to amount to negligence.

This is a very important case which touches on the integrity of corporate ownership as well as family relations. At the centre are divorce proceedings involving distribution of property, most of which is now held by the first respondent. The fourth and fifth respondent are parents to the first to third respondents whilst the rest of the applicants save for the first and sixth respondent are cousins and uncles.

It is important for the convenience of the court to put this dispute to rest if regard is had to the many matters already filed between the parties and the pending divorce matter. There is need for finality to litigation in the main matter. A declaration as to the rightful directors and shareholders of the first respondent would be useful. Though it would have been desirable to have applicants heard on this, they are not the main players. The fifth respondent can adequately address this. As I already noted, the applicants seem to have been involved only for delaying tactics and maintaining the *status quo*. As the main matter is already at pre-trial conference stage, this will avoid unnecessary delay.

On the prospects of success, the parties chances appear to even out. However, as already noted, the fifth respondent adequately represents the applicants' case.

I take the approach in *Rennie* v *Kamby Farms (Pty) Ltd* 1989 (2) SA 124 (A) at 131 G-J

> "In applications of this sort, the prospects of success are in general an important, although not decisive consideration. It has been pointed out *Finbro Furnishers (Pty) Ltd* v *Registrar of Deeds Bloemfontein & Ors* 1985 (4) SA 7733 (A) at 789 C that the court is bound to make an assessment of the petitioner's prospects of success as one of the factors relevant to the exercise of the court's discretion unless the cumulative effect of the other relevant factors in the case is such as to render application for condonation obviously unworthy of consideration. It seems to me that in the instant case the cumulative effect of the factors which I have summarized above is by itself sufficient to render the application unworthy of consideration, and that this is a case in which the court should refuse the application irrespective of the prospects of success."

COSTS

The conduct of the applicants which I have already classified as dilatory points to absence of *bonafides* in conducting litigation constitutes a ground for awarding costs on a higher scale. This has caused the respondents to be unnecessarily put out of pocket by applicants who seem to think that the condonation sought is a right they can just grab.

DISPOSITION

Accordingly, it is ordered as follows:

"The application for upliftment of bar is dismissed with costs on a legal practitioner and client scale."

MUCHAWA J…….

Matizanadzo Arrtoneys, Applicant's Legal Practitioners
Sawyer and Mukushi, First to Fourth Respondent's Legal Practitioners
Masawi & Partners, Fifth Respondent's Legal Practitioners